

6.	25CV1856	LUKE KILCOLLINS VS. KAREN MAYFIELD
MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 18, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 14, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

Plaintiff, Luke Kilcollins ("Plaintiff"), moves for leave to amend the complaint to add additional facts, a cause of action for negligence, and request for punitive damages. A proposed amended complaint has been submitted.

The proof of service in the court's file declares that on June 18, 2026, notice of the hearing and copies of the moving papers were served by electronic mail on Defendant, Karen Mayfield ("Defendant"). Defendant filed an opposition on July 24, 2026. Plaintiff filed a Reply on August 6, 2026.

Since filing the Complaint, Plaintiff has learned of additional information and has spoken with third parties regarding prior incidents of dog bites which Plaintiff argues supports a basis for punitive damages.

Defendant argues that Plaintiff seeks leave to amend based primarily on hearsay statements which would materially broaden the case from a dog-bite and negligence action into a punitive-damages case centered on alleged prior attacks. Defendant contends Plaintiff has not shown a competent factual basis for the proposed punitive allegations and since the amendment would materially expand the scope, burden, and cost of the litigation, the motion should be denied.

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code of Civil Procedure, § 473(a)(1).

There is a general policy in this state of great liberality in allowing amendment of pleadings at any stage of the litigation to allow cases to be decided on their merits. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) The rule of great liberality is particularly important where an amendment is sought to an answer. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159; *Hyman v. Tarplee* (1944) 64 Cal.App.2d 805, 813-814.) "...it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (Citations omitted.) If the motion to amend is timely made and the

granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (Citations omitted.)” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) “...absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564, 176 Cal.Rptr. 704.)” (*Board of Trustees of Leland Stanford Jr. University v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

It is irrelevant that new legal theories are introduced in the proposed amended pleading as long as the proposed amendments relate to the same general set of facts in the pleading that will be superseded. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

The Court is not persuaded that there will be substantial prejudice to Defendant, especially when weighed against the liberal policy in favor of amendment. Whether or not additional discovery is needed is not significant to the Court’s analysis because the Court notes that trial has been set for March 30, 2027, and discovery is still open. Defendant’s argument that Plaintiff’s motion rests on hearsay and lacks competent evidentiary foundation goes to the ultimate merits of the allegations, which is also unpersuasive at this stage.

Pursuant to Code of Civil Procedure §§ 473(a)(1) and 576, in the furtherance of justice, and in light of the liberal policy favoring amendment, Plaintiff’s Motion is granted.

TENTATIVE RULING #6:

PLAINTIFF’S MOTION FOR LEAVE TO AMEND IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG

August 14, 2026
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**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**